

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN TURKEY

Complete Community Opposition How-To

A practical guide for communities facing destructive development projects in Turkey, grounded in the ÇED environmental-assessment system, the public participation meeting, annulment actions and the court-expert examination, and documented community campaigns

This guide uses the Turkish legal terms you will actually encounter (the ÇED and the ÇED Olumlu decision, the Halkın Katılımı Toplantısı, the İDK, the iptal davası and yürütmeyi durdurma, the bilirkişi and keşif, and so on), each explained in plain language where it first comes up. Turkey's regulations change frequently — the ÇED Regulation has been amended many times — so the core mechanics below apply, but always check the current position.

A note on terms. Important terms are shown in **bold** the first time they appear, with a plain-language explanation right where they come up. Turkish terms are given with a short English gloss.

A note on money. Budgets in this guide are in Turkish lira (TRY). Every figure is indicative, and inflation makes fixed figures unreliable — Turkish community campaigns range from near-zero (volunteer-run, with pro-bono lawyers, professional chambers, and free participation) to funded efforts. Treat the ranges as relative weights rather than precise costs.

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INTRODUCTION & FRAMEWORK

Why This Matters

Community action changes project outcomes in Turkey — and the levers are unusually specific, so knowing which ones work is most of the battle. Turkish law requires most significant projects to go through **ÇED (Çevresel Etki Değerlendirmesi — Environmental Impact Assessment)** and obtain a favourable decision before they can proceed. That process includes a **Halkın Katılımı Toplantısı (HKT)** — a **public participation meeting held in the affected locality itself**, advertised in advance in national and local newspapers, at which residents can put objections on the record. And, decisively, a ÇED decision is an **administrative act**, which under **Article 125 of the Constitution** is subject to judicial review: any affected person, association, professional chamber, or municipality can bring an **iptal davası (annulment action)** in the **İdare Mahkemesi (administrative court)**, ask for **yürütmeyi durdurma (a stay of execution)** to freeze the project, and — the distinctive heart of Turkish environmental litigation — have the court appoint an independent **bilirkişi (expert panel)** which conducts a **keşif (site examination)** and produces the report

that usually decides the case.

That is a genuinely powerful toolkit, and Turkish communities have used it to real effect. The honest counterweight is heavy. Turkey pursues rapid, investment-led development in mining (especially gold), coal and thermal power, quarrying, hydro, and mega-infrastructure; the ÇED report is written by a licensed firm the developer pays; the reviewing commission sits under the ministry that promotes investment; **Turkey is not a party to the Aarhus Convention**, so its guarantees are not directly binding; **standing rules are applied restrictively**, so plaintiffs who neither live in nor own property in the project area are often turned away; and — the most important thing to understand — **a court victory is frequently not final**: when a court annuls a ÇED, companies routinely re-apply, patch the deficiencies the expert report identified, sometimes without a fresh public meeting, and obtain a new decision. Rulings have also at times simply not been implemented. Communities from Kaz Dağları to Akbelen, Cerattepe, İkizdere, and Efemçukuru have fought for years against exactly this pattern.

What "winning" realistically means. Rarely a permanent, once-and-for-all government "no". More often: a **ÇED Olumlu decision annulled or its execution stayed** by an administrative court on the strength of an expert report; a project frozen for months or years while litigation runs; forest-clearance or exemption decisions struck down; conditions tightened; a developer's economics broken by delay; or a project quietly shelved. Each has happened in Turkey. The realistic goal is to force the project into the legal process on your terms, win the expert report, keep the project suspended, and be ready to fight the next round when it comes — because in Turkey, more than almost anywhere, the fight is iterative.

The Strategic Framework

Five steps that reinforce each other:

1. **Target identification** — pin down what is proposed, which ÇED track it is on, who decides, whose standing is strongest, and the deadlines.
2. **Documentation** — build an evidence record strong enough for the public meeting, the commission, and above all the court's expert panel.
3. **Local opposition** — organise a durable community movement, because sustained local pressure supplies both the plaintiffs and the political weight.
4. **Legal challenges** — use the HKT, then the annulment action with a stay request and the bilirkişi/keşif process, plus the higher courts.
5. **Media strategy** — generate coverage that raises the political cost and protects the movement.

No single step wins alone. The combination — local pressure plus participation plus litigation built around the expert report — is what works in Turkey.

Critical Caveat: A Tilted System Can Make Opposition Harder (But Doesn't Make It Impossible)

Turkey's system leans hard toward investment and large projects, applies standing restrictively, and — critically — allows repeat ÇED applications after an annulment, so a win can be undone. Assessing that honestly helps you choose the right tools: the strongest routes are a rigorous intervention at the **HKT**, a well-constructed **annulment action with a stay request**, and, above all, a case built to persuade the **court-appointed expert panel** — reinforced by professional chambers, municipalities, and sustained local and media pressure, and by planning from day one for the second and third rounds. A tilt changes which lever works and how long you must hold it; it does not remove the levers. Section 13 deals honestly with tilted situations, including the re-application loophole, non-implementation of judgments, and the risks to defenders.

How to use this guide

Read Sections 1–3 once. Then work Section 4 (Target Identification) immediately — it produces the facts every other step needs, above all the ÇED track, the decision date, the short filing deadline, and who has the strongest standing. Sections 5–8 run in parallel. Sections 9–11 are reference material. Section 12 pulls it onto one timeline; Section 13 helps you decide, honestly, whether and how long to keep going.

HOW THE SYSTEM WORKS

Before you can fight a project you have to know who decides it, how, and the words the system uses. Turkey is a **unitary state with a strong presidential executive**, elected **municipalities (belediyeler)** and provincial administrations, and appointed **governors (valiler)**. Environmental assessment is governed by the **Environment Law No. 2872 (1983)** and the **ÇED Regulation (Çevresel Etki Değerlendirmesi Yönetmeliği)**, which is amended often. Power over a project is shared between the **Ministry of Environment, Urbanisation and Climate Change (Çevre, Şehircilik ve İklim Değişikliği Bakanlığı)**, the **provincial governorship and its environment directorate**, the **sector regulators**, and — as a check — the **administrative courts**.

The bodies that decide — and what each one controls

The Ministry of Environment, Urbanisation and Climate Change. The central ÇED authority: it receives the application, convenes the review commission, sets the report format, and issues the final **ÇED Olumlu (EIA Positive)** or **ÇED Olumsuz** decision for larger projects. It maintains the **e-ÇED** system and publishes decisions. Your central arena.

The provincial governorship (Valilik) and its environment directorate. For smaller projects, the province handles screening and issues **ÇED Gerekli Değildir (EIA Not Required)** or **ÇED Gereklidir** decisions. It also announces meetings and posts decisions locally — the announcements that start your legal clock.

The İnceleme Değerlendirme Komisyonu (İDK — Review and Evaluation Commission). Convened by the ministry from the relevant public institutions and, in principle, taking account of views from the public meeting, it sets the report's **Special Format**, reviews the ÇED Report, and shapes the decision. Its treatment of your objections is itself reviewable.

The sector regulators. A project also needs sector permissions, each **separately challengeable**: mining licences, **forest permission (orman izni)** and any **"public benefit" (kamu yararı) decision** where forest is cleared, water allocations, pasture and agricultural conversions, and zoning changes (**imar planı**). In several famous Turkish fights the decisive early win came not against the ÇED but against the **forest-clearance or exemption decision**.

The administrative courts. The **İdare Mahkemesi** in the relevant province hears annulment actions against all of these decisions; appeals go to the **Bölge İdare Mahkemesi** and, for some matters, the **Danıştay (Council of State)**. Because the courts are where Turkish communities have actually stopped projects, this guide treats them as part of the decision-making system, not merely a remedy.

Which one is "yours"? Ask: is the project on the **full ÇED track** (ministry decision, with a report and a public meeting) or the **screening track** (provincial "EIA Not Required" decision)? Has anyone claimed a **ÇED exemption (muafiyet)**? Which **sector permissions** — above all **forest permission** — does it need? Which **administrative court** covers the location? Pinning this down is Step 1.

How a decision is actually made — the journey of a project

For a project on the full ÇED track, the path is roughly:

1. **Application and announcement.** The developer files a **ÇED Başvuru Dosyası (application file)** prepared by a licensed firm; the ministry and the governorship **announce it publicly** and publish the file, and it reaches the commission through the **e-ÇED** system.
2. **The Halkın Katılımı Toplantısı (HKT — public participation meeting).** A meeting is held **in the affected locality**, advertised in a **national and a local newspaper at least ten days beforehand**, at which residents can hear the project explained and **put their views and objections on the record. This is your first and most important formal moment.** The views expressed are to be taken into account in scoping.
3. **Scoping and the Special Format.** The commission, taking account of the meeting, sets the **ÇED Report Special Format** — effectively the terms of reference — and the working group that will write the report.
4. **The ÇED Report and commission review.** The developer's licensed firm prepares the **ÇED Raporu**; the commission reviews it, may require revisions, and forms its view. You can and should submit written objections to the ministry and commission at this stage.
5. **The decision.** The ministry issues **ÇED Olumlu** or **ÇED Olumsuz**. The decision is **announced publicly — online, by local announcement, and by posting** — and that announcement starts the clock for going to court.
6. **The screening track and exemptions.** Smaller projects instead receive a provincial **"ÇED Gerekli Değildir"** decision, often with little or no public meeting; and some projects have proceeded on a claimed **exemption**. Both are administrative acts and both are challengeable — and challenging a wrongly-granted exemption or "not required" decision is one of the most effective early moves available.

Alongside all of this, the project needs its **sector permissions**, each with its own decision and its own annulment deadline.

The rulebook — the policies that decide the outcome

- **Environment Law 2872 and the ÇED Regulation.** Was ÇED required; was the right track used; was the meeting properly advertised and held; was the report adequate; was the decision lawfully reasoned? The core battleground.
- **The Constitution. Article 56** guarantees everyone the right to live in a healthy, balanced environment; **Article 125** subjects administrative acts to judicial review; **Article 138** obliges state organs to comply with court decisions — which matters greatly when judgments are ignored.
- **Forest, mining, water, pasture, and zoning law.** Separate permissions, separate grounds, separate deadlines — and often the softest target.
- **International law.** Turkey is **not** a party to the Aarhus Convention, so its guarantees are not directly binding, though the Constitutional Court has cited it as an interpretive source. Turkey is subject to the **European Convention on Human Rights**, and the ECtHR has found violations in Turkish environmental cases — most famously over the Bergama gold mine, where domestic rulings went unimplemented.

Follow the money — why the system often leans toward "yes"

Understanding the pressures is targeting, not cynicism. Turkey's growth model leans on construction, mining, and energy megaprojects; gold and coal mining and quarrying have expanded rapidly into forest and agricultural land; several large conglomerates hold both construction and mining interests and recur across the biggest conflicts; and the ÇED report is paid for by the developer while the reviewing commission sits under the ministry that encourages investment. None of this is illegal, but it explains the default lean toward approval — and why the decisive lever is the independent, court-appointed expert rather than the administrative process.

The overseers — who watches the decision-makers

- **The administrative courts** — the real check: they annul ÇED, forest, and zoning decisions and can suspend projects mid-construction.
- **The Danıştay (Council of State)** — the apex administrative court, which also sets the standing rules.
- **The Anayasa Mahkemesi (Constitutional Court)** — hears **individual applications** where fundamental rights, including rights connected to a healthy environment and to the execution of judgments, are breached.
- **TMMOB professional chambers** (engineers, architects, agricultural engineers, environmental engineers, city planners) and the **bar associations (barolar)** — recognised, expert litigants that have brought and won many of Turkey's leading environmental cases.
- **The Ombudsman (Kamu Denetçiliği Kurumu)** and **Court of Accounts (Sayıştay)** — administrative and public-money oversight.
- **The European Court of Human Rights** — a slow but real backstop where domestic remedies fail.

Naming and using the right body matters: in Turkey, the single most consequential decision a community makes is which decision to challenge, in which court, and with which plaintiffs.

QUICK REFERENCE: SUCCESS RATES

These figures are **directional, not guarantees** — patterns across documented Turkish and comparable campaigns, not a controlled study. Use them to prioritise effort. The most important lesson for Turkey sits inside the table: **litigation works** — administrative courts genuinely annul ÇED decisions and suspend projects, and the **court-appointed expert report is the pivot on which cases turn** — but a win is often **temporary**, because developers re-apply and patch the flagged deficiencies, so plan for repeat rounds and keep the community organised between them.

Individual Step Success Rates

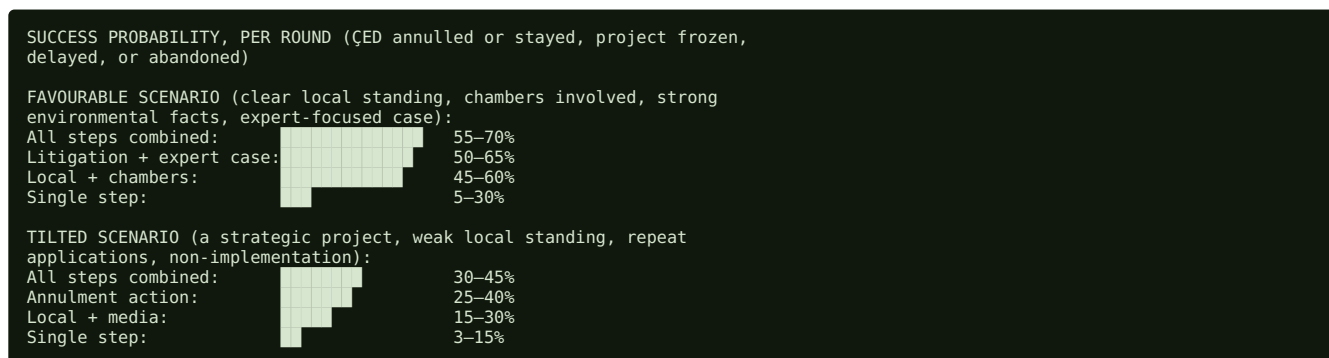
Approach	Success Rate	Timeline	Cost (TRY)	What "Success" Means
Documentation only	5-10%	2-4 months	low	Project slowed; public better informed
Local opposition only	20-30%	6-24 months	low-moderate	Local pressure; political cost rises
HKT (public meeting) intervention only	10-20%	1-2 months	low	Objections on record; scoping shaped
Objections to the commission only	10-20%	1-3 months	low	Record built; report sent back for revision

Only				
Annulment action (ÇED) only	35-55%	6-30 months	moderate	ÇED annulled or execution stayed
Challenge to forest/exemption decision	30-50%	4-24 months	moderate	Clearance stayed; project frozen
Media only	15-25%	2-6 months	low	Public knows; political cost rises
Docs + local opposition	30-40%	9-24 months	moderate	Pressure plus stronger case
Local + chambers/municipality litigation	45-60%	9-30 months	moderate	Strong plaintiffs; stay of execution
Litigation + expert-focused evidence	50-65%	9-30 months	moderate-high	Expert report against the project; annulment
All steps combined	55-70% (per round)	12-36 months	moderate-high	ÇED annulled/stayed, project frozen, delayed, or abandoned

Key insight: all steps together are far more effective than any single one — and in Turkey the mix that works is **local organisation + strong plaintiffs (residents, chambers, municipality) + a stay request + evidence aimed squarely at the court's expert panel**, backed by media. The distinctive Turkish advantage is that the courts really do stop projects, and the **bilirkişi** mechanism gives independent scientists a decisive role. The distinctive Turkish problem is that **success rates are per round**: an annulment often triggers a fresh ÇED application rather than ending the project.

A note on legal cost: the HKT and written objections are free. Litigation costs are moderate — court fees plus, importantly, the expert-examination fee (bilirkişi/keşif avansı) the plaintiff must deposit, a real and often significant sum. Many cases are carried by chambers, bar associations, and municipalities, spreading cost, and environmental lawyers often act pro bono for community platforms.

Effectiveness Visualization



How to read this honestly. In Turkey, the strongest legal facts are usually **defects in the ÇED process** (no or improperly advertised public meeting, a wrong track, an unlawful exemption, a report that ignores a decisive impact) and **substantive environmental risk** demonstrated to the court's expert panel — especially where **drinking-water catchments, forests, agricultural land, or protected areas** are involved. Courts have annulled or stayed major mining and coal projects on exactly these grounds. But be clear-eyed: even a clean win often produces **delay rather than finality**, since the developer can return with a revised application; and judgments are not always implemented promptly on the ground. The honest measure of success in Turkey is **years of delay, cumulative cost imposed on the developer, and a community still standing and organised** — which is how several of the country's best-known fights have actually been sustained.

Step Importance Ranking (When All Combined)

1. **Legal challenges** — uniquely in this guide series, litigation ranks first in Turkey: it is the mechanism that actually stops projects.
2. **Local opposition** — supplies the plaintiffs with standing, the political weight, and the endurance for repeat rounds.
3. **Documentation** — the raw material, and specifically the material that persuades the expert panel.
4. **The HKT and written objections** — cheap, and the source of the procedural defects that win cases.
5. **Media and political pressure** — the amplifier that raises cost and helps protect the movement.

Winning Turkish campaigns combined durable local organisation, strong plaintiffs (residents plus chambers, associations, and often the municipality), an early stay request, a case built for the expert panel, and sustained media — and then did it

again on the next application.

What Turkish Campaigns Actually Show

A few patterns recur across documented Turkish fights. **Courts stop projects** — administrative courts have annulled or stayed ÇED decisions for major gold-mining projects in the **Kaz Dağları (Mount Ida)** region, citing expert findings of irreversible harm and absence of public benefit, and have suspended forest-clearance and exemption decisions for the coal expansion at **Akbelen** in Muğla. **The expert report decides the case** — in the Kaz Dağları litigation the courts acted on the **bilirkişi** findings after a **keşif** attended by residents and bar representatives, and developers have repeatedly objected to and sought to reopen those reports, which tells you exactly where the pressure lands. **Water is the sharpest argument** — the proximity of a gold mine to the dam supplying a city's drinking water proved decisive. **Chambers and municipalities are powerful plaintiffs** — cases brought by professional chambers and a municipality succeeded where individual standing might have been contested. **But wins are provisional** — companies re-apply after annulment, remedy the deficiencies the experts identified, and often proceed without a fresh public meeting; Cerattepe, İkizdere, Efemçukuru, and Akbelen show projects returning round after round. The through-line: Turkey rewards communities that litigate well, build for the expert report, and stay organised.

STEP 1: TARGET IDENTIFICATION

You cannot fight what you have not precisely identified. Answer five questions, and write the answers in a shared document — this becomes the campaign's factual spine. In Turkey this step is unusually urgent, because the deadline to sue is short.

Core Questions You Must Answer

Question 1: What Exactly Will Be Destroyed?

Get the specifics, not impressions: exact location and footprint, project type and size, what is on the land now (homes, olive groves and orchards, farmland, forest, pasture, streams, a **drinking-water catchment or dam**, a protected area or cultural asset), and what the project would do to it. Obtain the **ÇED application file and ÇED Report** from the **e-ÇED system** or the ministry and governorship — published, and where the developer's own licensed firm admits the impacts. List every admitted impact with its page reference. Pay special attention to **water catchments, forest loss and tree-felling counts, agricultural and olive land**, and **cumulative effects** with neighbouring licences.

Question 2: Who Has Decision-Making Power?

Identify precisely: (a) which **track** the project is on — full ÇED (ministry, with a report and an HKT) or provincial screening ("ÇED Gerekli Değildir"), or a claimed **exemption**; (b) which **ministry unit and provincial directorate** handle it; (c) which **sector permissions** it needs — above all **forest permission** and any **public-benefit decision**, plus mining, water, pasture, and zoning approvals; and (d) which **administrative court** covers the location. Each decision is separately challengeable, which multiplies your opportunities — and your deadlines.

Question 3: What Specific Action Stops It?

A project can be stopped or frozen at several points: a **ÇED Olumsuz** decision; an **annulment or stay of a ÇED Olumlu decision** by the administrative court; annulment of a **"not required" decision or exemption**, forcing full assessment; annulment or suspension of the **forest-clearance or public-benefit decision** (often the fastest route to stopping chainsaws); annulment of a **zoning plan change**; or a developer abandoning the project after years of delay. Map them, and pursue more than one in parallel.

Question 4: When Is the Decision Final?

This is the question that ends campaigns. **Turkish deadlines are short and strict.** The period to bring an annulment action against a ÇED decision runs from the **public announcement** of that decision — online, by local announcement, and by posting — and for ÇED decisions is commonly counted as **thirty days**, while the general period for administrative annulment actions is sixty days. Because the applicable period, and the date the announcement is deemed to start it, are contested technical questions, **confirm both with a lawyer immediately** and act as though you have thirty days. Each separate permission (forest, zoning, mining) has its own clock. Diarise the HKT date, the decision announcement, and every filing deadline.

Question 5: Are There Documented Financial Interests or Systemic Pressures?

Map, factually and carefully: who profits, which company and parent group hold the licences (several large conglomerates recur across Turkey's biggest environmental conflicts), when the licence was granted, and whether the project is framed as strategic. Use public sources — the **Trade Registry Gazette (Ticaret Sicil Gazetesi)**, mining-licence records, the ÇED files, and procurement records. Build a dated, sourced timeline. Keep it factual; reckless public accusations carry real legal risk in Turkey.

Output of Step 1: a one-page fact sheet with the project's exact description, the ÇED track and decision-maker, every separate permission and its deadline, the strongest available plaintiffs, the competent court, and the money map.

Worked example: which lever is actually open

Suppose a gold mine is proposed on forested slopes above a dam that supplies a provincial city's drinking water, on land that also carries olive groves. Working the questions: **Q1** — the ÇED Report admits large-scale tree felling, cyanide-process risk, and proximity to the water catchment. **Q2** — it is on the **full ÇED track** (ministry decision, HKT required), and it also needs **forest permission** and a **public-benefit decision**, plus mining permits — each separately challengeable. **Q3** — the live levers are: a strong showing and formal objections at the **HKT**; written objections to the commission; an **annulment action with a stay request** against the ÇED Olumlu decision once it issues; and a parallel action against the **forest-clearance decision**, which is often what actually stops the chainsaws. **Q4** — you diarise the HKT and treat the ÇED announcement as starting a **thirty-day** clock, confirming with counsel. **Q5** — the registry shows the licence-holder and its parent group. **Plaintiffs:** local residents who live in or own property in the area, the **municipality**, the **agricultural engineers' and environmental engineers' chambers**, and local associations — the combination that has actually won these cases. In an afternoon you know that the water-catchment argument, aimed at the court's expert panel, plus a parallel forest challenge, is your strongest card.

STEP 2: DOCUMENTATION

Documentation separates a campaign the ministry, the commission, and above all the **court's expert panel** take seriously from one dismissed as sentiment. In Turkey there is a specific target for your evidence: the **bilirkişi** — the independent academic experts the court appoints, who will visit the site and write the report that usually decides the case. Build every layer with that panel in mind: what would a soil scientist, hydrogeologist, forest engineer, or environmental engineer need to see on the ground to conclude that this project causes irreversible harm and lacks public benefit?

The Three Documentation Layers

LAYER 1: BASELINE CONDITIONS DOCUMENTATION

Prove what exists **before** the project — and in Turkey, prove it in a form the expert panel can verify on the day of the **keşif**. Start the day you learn of the project.

Water above all. Document springs, streams, groundwater, and — decisively — any **drinking-water catchment, dam, or reservoir** and its relationship to the site. Distance, elevation, and flow direction toward a water source are the facts that have carried Turkish cases. Photograph and map them, dated and with coordinates.

Forest and trees. Document the forest: species, age, canopy, and — importantly — the **number of trees** to be felled and area cleared, a concrete, quotable figure. Where the developer's file gives a felling count or hectare figure, record it with the page reference.

Agriculture and livelihoods. Document olive groves, orchards, vineyards, arable land, beekeeping, and pasture, and the households living from them. Turkish courts weigh **agricultural land loss and public benefit** seriously, and olive groves carry specific legal protection.

Homes, health, and heritage. Document settlements and their distance from the site, water used for drinking and irrigation, and any archaeological or cultural assets, which trigger separate protective regimes.

How to hold it. Keep everything dated, geo-referenced, and backed up in more than one place. Build a simple map that a visiting expert can follow. A clear, verifiable baseline is worth more than a large, disorganised one.

LAYER 2: IMPACT ANALYSIS

Show what the project would do to that baseline. Your main text is the developer's **ÇED Report** — read it critically and catalogue four things:

1. **Admitted impacts** — every harm the report itself concedes, with page references. Unarguable, and the fastest material to deploy.
2. **Water and process risk** — scrutinise the treatment of the catchment, groundwater, tailings and any **cyanide or chemical process**, and accident scenarios. This is where Turkish cases are won and lost.
3. **Underestimated or omitted impacts** — downplayed forest and agricultural loss, and especially **cumulative impacts** with neighbouring licences and existing operations, which reports habitually ignore and courts increasingly notice.
4. **Procedural defects** — whether the **HKT** was properly advertised (national and local newspaper, at least ten days ahead) and genuinely held in the affected locality; whether views expressed were reflected in scoping; whether the right track was used; whether an **exemption** was properly available. These are the cleanest annulment grounds.

Get expert eyes on it — and think like the court's expert. A critique carries far more weight when a qualified professional has signed it. In Turkey the **TMMOB chambers** are uniquely valuable: chambers of environmental, agricultural, geological, forest, and mining engineers routinely produce technical critiques and act as litigants; universities are another source. Aim for a critique the commission must answer, which gives the expert panel a ready-made framework and a list of things to inspect.

LAYER 3: HEALTH & ECONOMIC IMPACT DOCUMENTATION

Translate environmental harm into human terms, because Turkish courts weigh **public benefit (kamu yararı)** explicitly, and a project that destroys more value than it creates is vulnerable. Document:

- **Health** — the specific risks to nearby residents from dust, blasting, chemicals, and above all contamination of drinking water.
- **Economy and livelihoods** — the value of the olive, fruit, agricultural, beekeeping, forestry, and tourism activity at risk, quantified as concretely as you can, and set against the project's claimed jobs and revenue. This comparison speaks directly to the public-benefit test.
- **Community and culture** — displacement, loss of village life, and cultural or sacred sites.

Package this layer twice: a rigorous version for the commission and the court, and a plain-language one-page version for neighbours and the press.

How to Structure Your Documentation

- **Phase 1: Baseline (Months 1-2)** — capture the "before" record, water and forest first, before any clearance; build the map for the eventual keşif.
- **Phase 2: Impact (Months 2-3)** — dissect the ÇED file and the procedural record; get chamber or academic review in time for the HKT and the commission stage.
- **Phase 3: Health/Economic (Months 3-4)** — quantify the human and economic stakes and the public-benefit comparison.

Common Documentation Pitfalls (What Fails)

- **Missing the deadline while gathering evidence** — file on time; evidence and expert reports develop during the case.
- **Neglecting the procedural defects** — the advertisement, the meeting, the track, the exemption: these are the cleanest wins and are easy to document contemporaneously.
- **Not documenting the water relationship precisely** — distance, elevation, and flow direction to a drinking-water source are decisive.
- **No professional sign-off** — an unsigned critique is easy to wave away; a chamber's report is not.
- **Ignoring cumulative impacts** — map every neighbouring licence and existing operation.
- **Failing to prepare for the keşif** — the site examination is the single most important day of the case; plan what the panel will see and who will be there.

Documentation Budget Breakdown (TRY)

Item	Low (volunteer/chamber)	Higher (commissioned)
Baseline mapping and photography	minimal	modest

Technical critique (chamber/academic)	often free	moderate
Independent water or soil testing	modest	moderate-high
Legal representation	often pro bono/shared	moderate
Court expert-examination deposit	unavoidable	unavoidable
Printing, travel, outreach	modest	moderate

Much can be done at low cost through the chambers, universities, and pro-bono lawyers. Budget deliberately for the **bilirkişi/keşif deposit**, which the court will require the plaintiff to pay and which communities are often unprepared for — raising it collectively in advance prevents a case stalling at exactly the wrong moment.

WHAT TO GATHER, AND WHERE TO FIND IT

Most of what wins a Turkish case already exists in public records, and much of it is online. The job is knowing which record holds which fact, and pulling it before the clock runs.

Start at the e-ÇED system and the ministry. ÇED application files, reports, and the resulting **ÇED Olumlu / Olumsuz** and "**ÇED Gerekli Değildir**" decisions are published by the ministry and the provincial directorates. This is your primary source, and it is where the developer's own admissions live.

Watch the announcements. The **HKT advertisement** in a national and a local newspaper, and the **public announcement of the decision**, are legally significant: they trigger participation and start your filing clock. Keep dated copies — newspaper page, screenshot, photograph of the posted notice. If the advertisement was late or defective, or the meeting moved or obstructed, that record becomes a ground of annulment.

Sector permission files. Forest permission and any public-benefit decision, mining licence records, water allocations, pasture conversions, and zoning plan changes — each held by its own authority, each separately challengeable, each with its own deadline.

Baseline environmental data. Water and meteorological data, forest inventories, agricultural statistics, and protected-area designations from the relevant directorates, plus university studies.

Ownership and money. Company and shareholding information from the **Trade Registry Gazette**, licence records, and procurement data.

How to force a document open. The **Right to Information Act No. 4982 (Bilgi Edinme Hakkı Kanunu)** requires public authorities to answer information requests within statutory periods, with review by the **Information Acquisition Review Board (BEDK)** and recourse to the administrative courts. Use the wording in Section 8E, and file early — the answer often supplies the missing procedural fact.

Free and low-cost help. The **TMMOB chambers** and **bar associations**, through their environment and city-law commissions, are the backbone of Turkish environmental litigation and will often advise, report, and litigate. Local **ecology platforms**, national environmental organisations, and university law clinics are further sources.

Tie it to the map. The dots and layers here are your starting index — a mapped project points you to the deciding authority and the licences behind it, and the local-ally entries point you to the platforms, chambers, and lawyers already working nearby. Pull that thread first, then follow it into e-ÇED, the permission files, and the information requests above.

STEP 3: BUILDING LOCAL OPPOSITION

Critical Insight About Organizing

Sustained local organisation is what makes Turkish litigation possible and durable. It supplies the **plaintiffs with standing** — courts look for people who live in or own property in the area — the **witnesses and guides for the site examination**, the **money for the expert deposit**, the **political cost** that makes a project uncomfortable, and, crucially, the **endurance to fight the next application** after a win is undone. Turkey has a deep tradition of exactly this: village-based resistance, **yaşam savunucuları (life defenders)**, local **ekoloji platformları** that persist for a decade or more, women-led village watches, and alliances with professional chambers and bar associations.

Three principles carry special weight: **rootedness** (the movement must be visibly led by the people who live there — their standing is what gets the case heard); **breadth** (chambers, bar associations, municipalities, and neighbouring villages convert a local grievance into a case with expert weight and political reach); and **endurance** (assume repeat rounds — the platform still standing in year five is the one that wins).

PHASE 1: FOUNDATION (Months 1-2)

Step 1a: Start with the most affected — and identify your plaintiffs. Reach the households whose water, land, olive groves, or homes are directly at stake, and deliberately **identify people who reside in or own immovable property in the affected area**, since their standing is hardest to contest. This is a legal task disguised as an organising task, and doing it early saves the case.

Step 1b: Affinity groups by concern. Let people plug in through what they care about — drinking water, forest, olive and fruit growing, beekeeping, health, tourism. Different concerns reach different people and different professional allies.

Step 1c: Form the platform, and bring in the chambers. Constitute a **platform or association (dernek/platform)** with clear aims and minuted decisions — an association can itself be a plaintiff and can hold funds. At the same time, approach the **TMMOB chambers** and the local **bar association**: their environment and city-law commissions litigate, produce technical reports, and lend expertise and standing that individuals cannot. Approach a lawyer immediately, because of the short filing deadline.

PHASE 2: PUBLIC LAUNCH (Months 2-3)

Step 2a: Mobilise for the Halkın Katılımı Toplantısı. The HKT is the campaign's first public test. Turn out in numbers, ensure **written objections are formally submitted and receipted**, have speakers prepared on water, forest, agriculture, and health, and **document the meeting** — attendance, obstruction, whether it was properly advertised and genuinely held. If the meeting is cancelled, relocated, or blocked, record that meticulously: it can become a ground of annulment.

Step 2b: Opposition materials. One-page, factual, sourced materials; lead with the drinking-water and forest stakes and the tree-felling figure from the developer's own file. Include how to submit objections and the deadlines.

Step 2c: Written objections to the commission. Coordinate mass written objections to the ministry and the commission during the report stage, and keep receipts.

Step 2d: Media at launch. Time it to the HKT so coverage and the meeting reinforce each other, and so the community's seriousness is visible from the start.

PHASE 3: COALITION EXPANSION (Months 3-6)

Step 3a: Broaden the alliance. Bring in the **municipality** (which can litigate in its own right and has done so decisively), neighbouring villages, national environmental organisations, academics, farmers' and beekeepers' associations, and the bar association. Each adds credibility, technical capacity, plaintiffs, and cost-sharing.

Step 3b: Coalition agreements. Agree roles, spokespeople, and messaging before disagreements arise, and settle explicitly: **who are the named plaintiffs, who instructs counsel, who raises and holds the expert deposit, who speaks to the press**. Settling this early prevents both paralysis and the splits that developers exploit with jobs and local spending.

Step 3c: Prepare for the keşif. Long before it happens, plan the **site examination**: what the expert panel should see, in what order, which residents will be present, whether bar and chamber representatives will attend, and what documents to hand over on the day. Communities that treat the keşif as the decisive event — because it is — win more cases.

PHASE 4: SUSTAINED PRESSURE (Months 6-12)

Step 4a: Political pressure. Lobby the municipality and provincial assembly for formal positions and their own legal actions, brief sympathetic MPs to table parliamentary questions, and press the ministry. A municipality's opposition is both political weight and a route into court.

Step 4b: Public actions and media (ongoing). Peaceful assembly and vigils are a long-standing Turkish tradition — the sustained watches at forest and mine sites are the emblematic form. Keep actions lawful and safe, get legal advice, and note that protests at project sites have met gendarmerie intervention, detentions, and prosecutions; arrange legal support in advance. Feed the media new pgs — the HKT, the decision, the filing, the stay, the expert report.

Step 4c: Prevent failure points. Campaigns fail when they miss the filing deadline, cannot raise the expert deposit, lose their local plaintiffs, are split by employment offers and local spending, or exhaust themselves after a first win and are unprepared for the developer's second application. Diarise deadlines, build a standing fund, protect unity, and plan explicitly for round two.

Worked example: a platform that unlocks the strong levers

A village learns that a gold mine is planned on the forested slopes above the dam supplying the province's drinking water. Anger is immediate and a social-media wave follows — real energy, no leverage. What converts it into force happens in the first weeks and is deliberately unglamorous. First, the community forms a **platform** and, in the same conversation, identifies **residents and property owners** who will be named plaintiffs, because their standing is what gets a case heard. Second, it **contacts the bar association and the TMMOB chambers**, which supply a lawyer, a technical critique, and their own capacity to sue. Third, it turns out in force at the **HKT**, files receipted written objections, and photographs the newspaper advertisement and the meeting itself. Fourth, it **documents the water relationship** — the distance and slope from the mine site to the reservoir — because that is the fact most likely to persuade an expert panel. Fifth, it raises a **standing fund** for the expert deposit before the case is filed. When the ÇED Olumlu decision is announced, counsel files an **annulment action with a stay request** within the short deadline, and a parallel action against the **forest-clearance decision**; the court appoints a **bilirkişi**, the community guides the **keşif**, and the panel's report becomes the basis for a stay and annulment. The lesson generalises: **in Turkey, the plaintiffs you identify, the chamber alliance you build, and the expert deposit you raise in month one are what make the court's decisive expert report possible by month ten — and the platform you keep alive is what wins round two.**

Opposition Building Budget: Year-Long Campaign (TRY)

Highly variable, and inflation makes fixed figures misleading. A lean, village-based platform runs on meeting costs, materials, travel, and printing, most of it volunteer. The distinctive Turkish budget line is the **court's expert-examination deposit**, which must be paid by the plaintiffs and should be raised collectively in advance. Legal representation is often pro bono or shared through chambers, bar associations, and the municipality. Turkish movements typically fund the legal stage through **community contributions, solidarity campaigns, chamber and municipal support, and cost-sharing across a coalition**. Keep transparent, collective accounts — it protects legitimacy and resists the money that splits villages.

STEP 4: LEGAL CHALLENGES

In Turkey, legal challenge is not the last resort — it is the main event. Administrative courts genuinely annul ÇED decisions and suspend projects, and the community's task is to get into court in time, with the right plaintiffs, against the right decision, and with a case built for the court's expert panel. Three tracks — the administrative process, the annulment action, and the higher and international courts.

TRACK 1: THE ÇED PROCESS ITSELF (the front door)

- **The Halkın Katılımı Toplantısı.** Attend in force, speak, and — critically — **submit written objections and obtain a receipt**. This shapes scoping, builds the record, and, where the meeting was improperly advertised, relocated, or obstructed, generates a clean procedural ground for later annulment.
- **Written objections to the ministry and the İDK.** During the report and review stage, submit technical objections, ideally with a chamber's or academic's report attached. The commission's failure to engage with substantiated objections is itself reviewable.
- **Demand the right track.** Where a project has been put on the screening track or claims an **exemption**, challenge that classification directly — forcing a full ÇED with a public meeting is a major win in itself.

TRACK 2: THE ANNULMENT ACTION (the decisive route)

- **İptal davası in the İdare Mahkemesi.** The core tool: an action to annul the **ÇED Olumlu** decision (or the "not required" decision, the exemption, the forest permission, the public-benefit decision, or the zoning change) as unlawful. Grounds include procedural defects in the ÇED process, an inadequate or misleading report, failure to assess cumulative impacts or a decisive risk, and **absence of public benefit** measured against the harm.
- **Yürütmeyi durdurma (stay of execution).** Ask for it **in the same petition**. A stay freezes the project while the case runs and is, in practice, the thing that stops chainsaws and machinery. Turkish courts have granted stays in major

mining and coal cases, sometimes on the basis that the project would cause irreparable harm.

- **Bilirkişi and keşif — where the case is decided.** The court will normally appoint an independent **expert panel** (typically academics in the relevant disciplines) and hold a **keşif**, a site examination. **This is the pivot of the entire case.** Prepare for it: ensure your plaintiffs, counsel, chamber representatives, and bar observers attend; guide the panel to the water source, the trees to be felled, the homes and groves; and hand over your documentation. Expect the developer to object to an unfavourable report and seek supplementary ones; be ready to respond, and know that pressure on experts is a known feature of these cases.
- **Deadlines.** File within the short period running from the **public announcement** of the decision — treat it as **thirty days** for ÇED decisions and confirm with counsel, noting the general sixty-day administrative period and that each separate permission has its own clock. Missing this is the most common way Turkish communities lose.
- **Standing.** Name plaintiffs who **reside in or own property in the affected area**, and add **associations, TMMOB chambers, the bar association, and the municipality**, whose standing in environmental matters has repeatedly been accepted. A well-constructed plaintiff group is itself a legal strategy.

TRACK 3: HIGHER AND INTERNATIONAL COURTS (the backstops)

- **Appeal.** Decisions of the administrative court go on appeal to the **Bölge İdare Mahkemesi**, and in some matters to the **Danıştay**, which also sets the standing doctrine.
- **Constitutional Court individual application.** Where fundamental rights are breached — including where **final court judgments are not implemented**, which engages the right to a fair trial and the constitutional duty on state organs to comply — an individual application is available after domestic remedies are exhausted.
- **The European Court of Human Rights.** A slow but genuine backstop: the Court has found violations arising from Turkish environmental cases, notably where authorities failed to give effect to domestic judgments concerning a gold mine. Preserve the point domestically first.

The three legal challenge types

TYPE 1: THE ÇED PROCESS (the front door)

The HKT and written objections — free, record-building, and the source of the procedural defects that later win annulments.

TYPE 2: THE ANNULMENT ACTION (the decisive route)

An action with a stay request in the administrative court, won or lost on the court-appointed expert report.

TYPE 3: HIGHER AND INTERNATIONAL COURTS (the backstops)

Appeal, the Constitutional Court (especially for non-implementation), and the ECtHR.

Legal Strategy Decision Tree

1. **Has the ÇED process begun?** → Mobilise for the **HKT**, file receipted written objections, and instruct a lawyer now.
2. **Is the project on the wrong track or claiming an exemption?** → Challenge the classification directly to force a full ÇED.
3. **Has a ÇED Olumlu decision been announced?** → File an **annulment action with a stay request** within the short deadline, and prepare for the **keşif**.
4. **Is forest clearance or a zoning change imminent?** → File a **parallel action** against that decision — often the fastest way to stop work on the ground.
5. **Has a judgment been ignored, or a fresh application filed after your win?** → Return to court on the new decision, and consider the **Constitutional Court** for non-implementation.

Litigation Success Factors

Timely filing; plaintiffs with unimpeachable local standing plus chambers and the municipality; a stay request made at the outset; evidence organised for the **expert panel** and a well-prepared **keşif**; the deposit paid without delay; a decisive, concrete environmental fact (a drinking-water catchment, a felling count, an irreplaceable agricultural landscape); and an explicit **public-benefit** argument comparing what is destroyed with what is gained.

What to Avoid: Legal Failures

Missing the short deadline; suing only in the name of people or bodies without local ties; forgetting the stay request; failing to raise the expert deposit; ignoring the parallel permissions (especially forest); treating the keşif as routine; and disbanding after a first win instead of preparing for the developer's next application.

TURNING YOUR EVIDENCE INTO ARGUMENTS

Evidence only counts when it is aimed at a specific legal ground. Here is how the records you gathered map onto the arguments that most often work in Turkey.

A defective or obstructed public participation meeting → annulment. Feed it with: the newspaper advertisement (and its date), photographs and attendance records, and any evidence of relocation, obstruction, or short notice.

Wrong track or an unlawful exemption → annulment; full ÇED forced. Feed it with: the project's true scale and category against the classification used.

Risk to a drinking-water catchment → stay and annulment (the strongest substantive ground). Feed it with: distance, elevation, and flow direction to the reservoir or spring; the process chemistry; and accident scenarios — presented so the expert panel can verify them on site.

Forest loss and tree felling → annulment of the ÇED and the forest permission. Feed it with: the felling count and hectares from the developer's own file, and the ecological function of the stand.

Loss of agricultural land and livelihoods → the public-benefit argument. Feed it with: the value of olive, fruit, agricultural, beekeeping, and tourism activity at risk, set against claimed jobs and revenue.

Ignored cumulative impacts → inadequate assessment. Feed it with: a map of neighbouring licences and operations and the report's silence on their combined effect.

A judgment not implemented → Constitutional Court, and political leverage. Feed it with: the judgment, the evidence of continued work, and your dated record of both.

The pattern: match one clean, documented defect to one clear ground, lead with **procedural defect plus water risk**, frame everything against **public benefit**, and design it all to be verified by the expert panel during the site examination.

STEP 5: MEDIA STRATEGY

Media rarely stops a Turkish project on its own, but it raises the political cost, protects the movement and its people, brings in chambers, lawyers, and academics, and sustains a fight that may run for years. Turkish environmental struggles have repeatedly become national stories, and that visibility has mattered.

How Journalists Actually Work

Reporters need a hook, a human face, a conflict, and a document. Hand them the developer's own admissions (quoted, with page numbers and the tree-felling figure), a named villager whose water or olive grove is at stake, a clear date — the HKT, the hearing, the keşif — and a strong image: the forest, the reservoir, the vigil. Make it easy, and never give a fact you cannot stand behind.

The Newsworthiness Formula

Local stakes + a credible threat + a date + a David-and-Goliath frame + a visual = coverage. In Turkey, three angles reliably travel: **drinking water**, **forests and tree-felling counts**, and **olive groves and agricultural land** — each of which carries national resonance well beyond the affected province.

Know the Outlets That Cover This Beat

Map the national outlets with environment and investigative desks, the specialist ecology publications, and — importantly — **local newspapers and radio**, which reach affected villages directly. Turkish media is concentrated and often cautious; specialist and local outlets are frequently the most reliable partners.

Building Reporter Relationships (The Key)

Give reporters accurate, sourced material and become their reliable contact. One trusted relationship beats a dozen releases. Offer access — to the site, to villagers, to your chamber experts — and be scrupulously accurate: a single overstatement can discredit the campaign and invite legal action.

Why media matters even when it doesn't make the front page

Coverage reaches the academic who will write your technical critique, the lawyer who will take the case, the chamber that will join it, and donors who will fund the expert deposit. It creates a dated public record that helps protect people at vigils. And in a fight running years, sustained coverage keeps a community from feeling alone.

Sample Media Timeline

Launch with the HKT; refresh at each milestone — the decision announcement, the case filing, the stay, the keşif, the expert report, the judgment, and any fresh application. Each is a natural news peg.

Media Measurement

Track coverage, but measure what matters: whether experts, chambers, and lawyers come forward; whether the municipality and politicians move; whether the movement grows; and whether the developer's timeline is slipping.

EMAILS & LETTERS

Ready-to-adapt templates. Keep them factual, dated, and sourced. File important ones through the authority's registry (**gelen evrak / kayıt**) or by registered post (**iadeli taahhütlü**) and keep dated proof — Turkish deadlines are short and proof of filing decides cases. Have a lawyer review anything heading to court, and never publish accusations you cannot prove.

8A. Email to a reporter (story pitch)

Subject: [Province]: villagers challenge [project] — hearing on [date], documents attached

Dear [name],

A [project type] is planned at [location, province]. The developer's own ÇED Report admits [specific admitted impact, quoted, with page number], including the felling of [number] trees and works [distance] from [the dam/spring] that supplies drinking water to [settlement]. The public participation meeting / court examination is on **[date]**.

The community, organised as **[platform]**, together with [the bar association / the chamber of ___ / the municipality], has filed objections and [is preparing / has filed] an annulment action with a stay request. The human stakes: [water/olive/health point].

I can connect you with villagers and our technical experts, and arrange a site visit. Could we talk this week?

[Name] · [Platform] · [phone] · [email]

8B. Letter to a decision-maker (ministry / provincial directorate / municipality)

Subject: [Project] — ÇED file no. [number]

To the [Ministry of Environment, Urbanisation and Climate Change / Provincial Directorate / Mayor]:

We write on behalf of the residents of [village/district] regarding [project] at [location]. We respectfully request that you **[issue a ÇED Olumsuz decision / require a full ÇED / withhold the forest permission / take a formal position against the project]** for the following reasons:

1. [Ground 1 — e.g. the project lies within/adjacent to the catchment of [the dam] supplying drinking water to [settlement].]
2. [Ground 2 — e.g. the ÇED Report does not assess cumulative impacts with the [number] neighbouring licences.]

3. [Ground 3 — e.g. the felling of [number] trees and loss of [x] hectares of forest and olive grove destroys more public benefit than the project creates.]

We request a written response. We are ready to provide our evidence and technical reports.

[Signatories, platform, contact]

8C. Written objection at the public participation meeting (HKT)

Objection submitted at the Halkın Katılımı Toplantısı for [project], [date], ÇED file no. [number]

We, residents of [village/district], submit the following objections: 1. **Water.** [The project lies [distance] upslope of [the dam/spring] supplying our drinking water; contamination risk is not adequately addressed.] 2. **Forest and agriculture.** [The project requires felling [number] trees and the loss of [x] hectares of forest/olive grove.] 3. **Procedure.** [The meeting was advertised on [date], [less than ten days in advance / in a paper not circulating locally] / was relocated from [place] to [place].] 4. **Cumulative impacts.** [The report ignores the [number] other licences in this basin.]

We request that these objections be recorded in full and reflected in the scoping and Special Format, and that the project receive a ÇED Olumsuz decision.

[Date, names and signatures, addresses in the affected area, contact. Obtain a receipt.]

8D. Approach to a professional chamber or bar association

Subject: Request for support — [project], [province]

To the [TMMOB Chamber of ___ / [Province] Bar Association, Environment and City Law Commission]:

The residents of [village], organised as [platform], are opposing [project] at [location], which threatens [drinking-water catchment / forest / olive groves]. We attach the ÇED file reference and our documentation.

We respectfully request your support: a technical assessment, your participation as a plaintiff in an annulment action, and representation at the site examination. We would welcome a meeting at your convenience.

[Name, platform, contact]

8E. Right to information request (Law No. 4982)

Subject: Request under the Right to Information Act No. 4982

To [the Ministry / Provincial Directorate / Regional Forest Directorate]:

Under the **Right to Information Act No. 4982**, we request: 1. the full ÇED application file, ÇED Report, and decision for [project], file no. [number]; 2. the record of the public participation meeting and the newspaper advertisement, with dates; 3. the commission's composition, minutes, and the Special Format; 4. the forest permission and public-benefit decision files for the project.

Please provide these within the statutory period. If any part is refused, please state the legal basis; we reserve the right to apply to the Information Acquisition Review Board and the administrative courts.

[Name/platform, date, contact]

8F. Instruction to counsel (annulment action + stay request)

Subject: Annulment action and stay request — [project], ÇED decision dated [date]

Dear [counsel],

The ÇED Olumlu decision for [project] was announced on [date]. We instruct you to file an **annulment action with a request for stay of execution** before the [province] Administrative Court, and to advise on a **parallel action against the forest permission / public-benefit decision / zoning change**.

Proposed plaintiffs: [named residents who live in or own property in the area], [platform/association], [chamber], [municipality]. We can provide: the ÇED file and our page-referenced analysis, technical reports from [chamber/academic], mapping of the water catchment relationship, and photographic baseline evidence.

Please confirm the **filing deadline** and the **expert-examination deposit**, which we have raised and can pay

immediately, and advise on preparation for the site examination.

[Date, signature]

8G. Press release (effective)

FOR IMMEDIATE RELEASE — [date]

Residents of [province] go to court to protect [the River/Dam ___] from [project]

[Platform], together with [the bar association / chamber / municipality], today filed an annulment action with a stay request against the ÇED Olumlu decision for [project] at [location], citing [top two grounds]. "[Short, human quote from an affected villager]," said [name, role].

The developer's own ÇED Report admits [quoted impact] and the felling of [number] trees. The site lies [distance] from [the dam] supplying drinking water to [settlement]. A site examination by court-appointed experts is expected [timing].

Contact: [name, phone, email]. Photographs, the full petition, and interviews available on request.

8H. Petition to the municipality or provincial assembly

Subject: Request for a formal position and legal action on [project]

To the [Mayor and Municipal Council / Provincial Assembly]:

We, residents of [village/district], request that the Council (1) adopt a formal decision opposing [project] at [location], (2) refuse or withhold any permission within its competence, and (3) **join or bring an annulment action** against the ÇED decision and the associated forest and zoning decisions, as municipalities have done successfully elsewhere.

The project threatens [drinking-water source / forest / agricultural land] on which [number] residents depend. We attach our documentation and are ready to brief the Council.

[Platform, date, contact]

Important Caveat

Templates are starting points. Adapt every one to your real facts, cite the actual file number and dates, and have counsel review anything heading to court. **Deadlines are short and strictly applied** — treat the ÇED announcement as starting a thirty-day clock and confirm immediately with a lawyer; each separate permission has its own period. Keep dated proof of everything you file. And be careful with public allegations about named individuals or companies: defamation and related claims are a real risk in Turkey, so keep to documented facts and let the court filings carry the accusations.

IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

Not everyone can build a platform or run a multi-year campaign. If you have an afternoon a week, you can still do real damage to a bad project — and two of the highest-leverage actions take a single day each. In rough order of impact for the effort:

1. **Get to a lawyer, and diarise the deadline.** The single most valuable hour you will spend. Turkish filing periods are short and strictly applied, and a missed deadline ends the fight. Treat the ÇED announcement as starting a **thirty-day** clock and confirm.
2. **Attend the Halkın Katılımı Toplantısı and file a receipted written objection.** Free; it shapes the assessment and preserves the procedural grounds that later win annulments. Photograph the newspaper advertisement and the meeting.
3. **Contact the TMMOB chamber and the bar association.** In Turkey these bodies litigate environmental cases as a matter of course, can be plaintiffs in their own right, and will often supply the technical report. One email can hand your fight to people who do this professionally.
4. **Photograph the "before" — especially the water.** Dated images of the clear stream, the reservoir, and the forest, with locations, become evidence the court's experts can verify.

5. **Get the ÇED Report and quote its worst admission back to the ministry** (Section 8B), with the tree-felling figure. The developer's own words carry more weight than any outside claim.
6. **Ask the municipality to act** (Section 8H). A municipality can adopt a position and sue in its own name.
7. **Send one accurate email to a reporter** (Section 8A), leading with the drinking-water angle.

If you do only the first three, you have preserved the legal route, built the procedural record, and connected the fight to institutions that litigate for a living. That is a real contribution, not a token one.

WHEN THE SYSTEM IS TILTED

Turkey's system leans hard toward investment and large projects, applies standing restrictively, under-resources enforcement, and — the defining structural problem — lets a developer come back after losing. Being honest about this is how you pick the tools that actually work and pace yourself for the fight you are really in.

What This Tilt DOES (and DOESN'T DO)

The tilt means the assessment is written by the developer's consultant, reviewed by a commission under an investment-promoting ministry, and defended with the language of national strategic interest; it means protests at project sites can meet a heavy response; and it means a court win can be undone by a fresh application. It does **not** close the doors: administrative courts have **annulled and stayed** major ÇED decisions; **forest and exemption decisions** have been suspended; **chambers, bar associations, and municipalities** have standing and use it; the **Constitutional Court** and the **ECtHR** sit behind the system; and the **court-appointed expert** remains genuinely independent of the ministry. The key is to litigate early and well, fight on several permissions at once, and organise for repeat rounds.

Reading Your Tilt: Responsive, Mixed, Strategic

- **A clear defect and strong local standing.** Where the public meeting was defective, the water risk is demonstrable, and you have resident plaintiffs plus a chamber, the courts do real work and your odds are genuinely good.
- **Mixed.** A project the government supports but a municipality and community oppose. Weight shifts toward the parallel permissions (forest, zoning), municipal litigation, media, and endurance.
- **Strategic project.** A large mine, coal complex, or megaproject framed as nationally important, often backed by a major conglomerate. Assume repeat applications, pressure on experts, and slow implementation of any judgment; prepare a **multi-round strategy**, a standing legal fund, and protection for people at the site — and treat years of delay as a real, legitimate outcome.

Documented Turkish Dynamics

The record shows both the wall and the way through. Administrative courts in Çanakkale annulled and stayed the ÇED decisions for gold-mining projects in the **Kaz Dağları** region, acting on **expert reports** that found unacceptable environmental risk and no public benefit, in litigation brought by a **professional chamber**, the **municipality**, and residents — with the **site examination** attended by citizens and bar representatives. In Muğla, courts issued **stays** against the ÇED exemption and the forest-cutting decision for the **Akbelen** coal expansion, in a resistance sustained by villagers over years. But the counterweight is equally documented: after an annulment, companies routinely **re-apply**, remedying the specific deficiencies the expert report identified and often proceeding **without a fresh public participation meeting**, and long-running fights at **Cerattepe**, **İkizdere**, and **Efemçukuru** show projects returning again and again. Turkey has also been found in breach at the **European Court of Human Rights** over the failure to give effect to domestic judgments concerning a gold mine. The recurring lesson: **win the case, expect the rematch, and keep the community intact between rounds.**

Assessment Framework — Determine Your Situation

Ask: Was the public meeting properly advertised and held? Is a drinking-water catchment, forest, or protected agricultural land at stake? Do we have plaintiffs who live in or own property in the area? Will a chamber, bar association, or the municipality join? Can we raise the expert deposit? Is this a strategic project likely to return after an annulment? Are people at the site at risk of detention or prosecution? The answers tell you which decision to challenge first, how to build for the expert panel, and how long to plan for.

Direct Action: Factual Information (Descriptive, Not Prescriptive)

Turkish environmental struggles have a strong tradition of peaceful assembly, village watches, and sustained vigils at forest and mine sites — this is the emblematic form of resistance in the country's best-known fights. Peaceful assembly is a constitutional right, but in practice demonstrations at project sites have met gendarmerie intervention, detentions, and prosecutions, and tents and watch posts have been cleared. Know the law, keep actions lawful and orderly, arrange legal support in advance for anyone detained, prioritise the safety of villagers and especially of elderly participants, and take legal advice before anything that could carry legal or physical risk. This guide notes such tactics exist; it does not advise breaking the law, and the movement's safety and credibility are assets worth protecting.

Honest Assessment

Tilted fights are harder, and in Turkey longer than communities expect, because the legal system gives real wins the administrative system can partly undo. But "harder" is not "hopeless" — Turkish communities have stopped chainsaws, frozen mines mid-permit, forced full assessments, and outlasted developers, and courts have repeatedly sided with residents. Concentrate force where the tilt is weakest — the independent expert panel and the procedural record — protect your people, build a fund, and settle in for a fight measured in years.

WHEN IT'S ACTUAL CORRUPTION — AND WHO IS CAPTURED

Most bad decisions are lawful decisions you disagree with. But capture is real, and it does not look the same in every institution. Read your situation actor by actor, because the type of capture changes which lever works. Handle it carefully: Turkey has active defamation and insult provisions, and reckless public accusations can expose campaigners to criminal and civil liability and hand the developer a way to change the subject.

The consultants and the ÇED report. The structural weakness: the report is prepared by a **licensed firm the developer hires and pays**, competing for repeat business. Signs: a report that reads as advocacy, missing cumulative impacts, an implausibly benign water assessment. Lever: the chamber critique, written objections, and — decisively — the court's independent expert.

The ministry and the review commission. The commission sits under a ministry with an investment-promotion mandate, and its composition and reasoning are rarely transparent. Signs: objections unanswered, a rushed format, an approval issued despite documented risk. Lever: information requests for the commission's minutes and composition, and the annulment action.

The re-application route. The most consequential structural problem is not hidden at all: after a court annuls a ÇED, the developer applies again, fixes the specific defects the experts named, and frequently obtains a new decision without a fresh public meeting. This is a systemic feature to plan for, not a scandal to expose — the answer is a standing legal capacity and a community that does not disband.

Local officials and the municipality. Local politics can go either way — municipalities have been among the most effective litigants against projects, and elsewhere local officials have facilitated them. Signs: a sudden zoning change, permissions issued out of sequence. Lever: municipal council pressure, the zoning annulment action, and the Court of Accounts.

The companies. A handful of large conglomerates recur across Turkey's most-contested mining, quarrying, and infrastructure projects, sometimes holding both construction contracts and extraction licences. Establish ownership from the **Trade Registry Gazette** and licence records — provable, documentary facts, not rumour.

Pressure on experts and on judgments. Two documented pathologies deserve naming: **developers objecting repeatedly to unfavourable expert reports** and seeking supplementary opinions, and **judgments not implemented on the ground**. The answers: a well-prepared site examination with strong technical backing, and — for non-implementation — the constitutional duty to comply, the Constitutional Court, and ultimately Strasbourg.

How to act on it, safely. Document from public sources before you speak. Route serious allegations through the proper channels — the **Ombudsman**, the **Court of Accounts**, the prosecutor where a genuine offence is disclosed — and, above all, into your **court filings**, where they are protected and consequential. Do not make unproven public accusations about named individuals: in Turkey that is a legal risk to you and a gift to the other side. Name capture privately in your strategy; prove it publicly only when you can.

INTEGRATION & TIMELINE

The five steps run in parallel and reinforce each other. In Turkey the timeline has an unusual shape: a very short window at the start, a long middle dominated by litigation and the expert examination, and — often — a second round beginning just as the first ends.

Realistic 12-Month Campaign Timeline

Months 1-2 (Foundation). - Identify the target precisely (Step 1) and write the one-page fact sheet — ÇED track, decision-maker, every separate permission, the competent court, and every deadline. - Form the platform and **identify plaintiffs who live in or own property in the affected area**. - **Instruct a lawyer immediately** and confirm the filing periods. - Approach the **TMMOB chambers and the bar association**; brief the municipality. - Begin baseline documentation (Step 2, Layer 1) — water, forest, and groves first, before any clearance. - Start raising the **expert-examination fund**.

Months 2-3 (Launch). - Mobilise for the **Halkın Katılımı Toplantısı**; file receipted written objections; photograph the advertisement and the meeting (Step 4, Track 1). - Submit technical objections to the ministry and commission, with a chamber report attached. - Launch media timed to the HKT (Step 5). - Complete the ÇED critique — water, forest, cumulative impacts, procedure (Step 2, Layer 2).

Months 3-6 (Decision and filing). - Watch for the **decision announcement** and file the **annulment action with a stay request** within the short deadline (Step 4, Track 2). - File **parallel actions** against the forest permission, exemption, or zoning change. - Pay the **expert deposit** promptly; broaden the coalition (Step 3, Phase 3). - Complete the health/economic and public-benefit analysis (Step 2, Layer 3).

Months 6-12 (The expert examination and decision). - Prepare intensively for the **keşif**: the route, the witnesses, the documents, the attendance of counsel, chambers, and bar observers (Step 3, Phase 3). - Respond to the developer's objections to the expert report and to any supplementary report. - Sustain political and media pressure at each milestone (Steps 3 and 5). - Pursue the stay decision, and enforce it if works continue.

Beyond 12 months. - Expect appeals, and — critically — a **fresh ÇED application** if you win. Keep the platform, the lawyer, the chambers, and the fund in place, and run the next round faster than the first. - Where a judgment is ignored, pursue the constitutional duty to comply, the Constitutional Court, and ultimately Strasbourg. - Keep the evidence archive alive; it is the foundation of every subsequent round.

Warning Signs — Act Early

A ÇED application file appears on the e-ÇED system; a newspaper advertisement announces a public meeting; a project is placed on the screening track or claims an exemption; forest permission or a zoning change is sought; machinery or survey teams appear on the ground; a fresh application follows an annulment. Each is a trigger to act **immediately**, because the deadlines are short — and the first two are your best opportunities of the entire campaign.

Key Principles (What Separates Winning Campaigns from Losing Ones)

Winning campaigns: instruct a lawyer in week one; identify plaintiffs with local standing; mobilise for the HKT and file receipted objections; challenge every permission, not just the ÇED; request a stay at the outset; raise the expert deposit early; prepare the site examination as the decisive event; keep chambers, bar associations, and the municipality engaged; sustain media; and **plan for round two from the start**. Losing campaigns: miss the short deadline; sue without locally-rooted plaintiffs; forget the stay request; cannot pay the deposit; treat the keşif casually; and disband after a first win.

FINAL ASSESSMENT

Real Outcomes: What Winning Looks Like

"Winning" in Turkey takes several forms, and it is worth naming them so you recognise a win when you get one: - a **ÇED Olumsuz** decision, or a **ÇED Olumlu decision annulled** by an administrative court; - a **stay of execution** that freezes the project — often the practical difference between a standing forest and a cleared one; - a **forest permission, exemption, or zoning change struck down**, halting work on the ground; - an unlawful **"not required" decision**

annulled, forcing a full assessment with a public meeting; - an **expert report** on the record finding irreversible harm and no public benefit — an asset in every future round; - **years of delay** that break a project's economics, or a developer's quiet withdrawal; - and a **community still organised**, with lawyers, chambers, and an evidence archive, when the next application comes.

Turkish communities have achieved every one of these — repeatedly, and usually through the courts.

Decision Point: Continue, Modify, or Reassess

Reassess honestly at each milestone. If the procedural defects are clear and the water or forest case is strong, litigation is very much worth it — this is a jurisdiction where communities win in court. If a decision has been annulled and a fresh application filed, the right response is usually to run the next round with the same team and better evidence, not to start again from nothing. If deadlines have passed, shift to the parallel permissions, the next decision point, monitoring, and municipal politics. Continuing is not always right; but in Turkey, quitting after a first-round win is the most common way a community ultimately loses.

The Bottom Line

Turkey's system leans hard toward investment and large projects, applies standing narrowly, keeps assessment in developer-paid hands, and — uniquely among the systems in this series — allows a defeated developer to return with a fresh application. But it also gives communities something many jurisdictions do not: **courts that genuinely stop projects**. The **Halkın Katılımı Toplantısı** puts objections and procedural defects on the record; the **annulment action with a stay request** can freeze a project mid-permit; the **court-appointed expert panel and site examination** put independent scientists at the centre of the case; **professional chambers, bar associations, and municipalities** litigate alongside residents; and the **Constitutional Court** and the **European Court of Human Rights** stand behind the system. Communities that instruct a lawyer in the first week, secure locally-rooted plaintiffs, mobilise for the public meeting, challenge every permission rather than only the ÇED, build their evidence for the expert panel, raise the deposit early, prepare the site examination as the decisive day, keep the chambers and the municipality close, sustain the media, and stay organised for the rematch have annulled approvals, frozen mines, saved forests, and outlasted developers — and can again. No single step wins; the combination does. Start today by finding your deadline, finding your plaintiffs, and photographing the water while it is still clear.